

9:00 AM

Line 5

24-CIV-05539 ERAY ERBAY VS. HUSEYIN TOSUN, ET AL

ERAY ERBAY
HUSEYN TOSUN

BRIAN M CARTER
SUSAN E. BISHOP

Cross-Complainants Motion to Quash the Deposition Subpoena for Production of Business Records Served on Bank of America and for Sanctions

TENTATIVE RULING:

For the reasons stated below, Cross-Complainants Huseyin and Sema Tosun's Motion to Quash, filed March 25, 2026, which seeks an order quashing the Deposition Subpoena for Production of Business Records served on third party Bank of America on February 26, 2026, is GRANTED-in-part and DENIED-in-part. (Code Civ. Proc. § 1987.1)

The Tosuns' March 25, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code § 452(d).)

Background.

Zeyher Corporation ("Zeyher") owns/owned a restaurant in San Carlos called Stamp Bar and Grill. From October 2021 to June 2023, Plaintiff Eray Erbay ("Plaintiff") worked as a waiter for Zeyher at the restaurant. Plaintiff filed this case against the Tosun defendants, who were owners or co-owners of Zeyher, asserting wage and hour claims under the California Labor Code. In October 2024, the Tosun filed a Cross-Complaint ("XC") against Muslum Caferoglu ("Caferoglu") for Contractual Indemnification, Equitable Indemnification and Contribution. The XC alleges that Mr. Caferoglu managed the restaurant and is contractually obligated to indemnify the Tosuns for costs and fees that they incurred in defending Plaintiff Erbay's lawsuit. In June 2024, Mr. Tosun and Mr. Caferoglu settled a dispute involving their respective ownership interests in Zeyher by way of a written Settlement Agreement, which included an indemnification clause stating:

Should any third party bring any claim against one of the Parties arising from the conduct of the other Party related to the operation of Stamp, the Party not named in the claim shall indemnify the other Party against whom the claim is made for 50% of all costs, including court costs and reasonable attorneys' fees, incurred in the defense of such action unless such claim arises solely from acts or omissions over which only *one Party had exclusive control* in which circumstance the Party shall bear 100% of any liability arising therefrom.

(XC, ¶ 19 [emphasis added].)

Plaintiff Erbay's claims against the Tosuns have resolved. The only remaining claims in this case are the XC's (the Tosuns') indemnification claims against Mr. Caferoglu.

In mid-2025, Mr. Caferoglu served a subpoena on third party Bank of America, which sought essentially all documents relating to Zeyher Corporation's bank accounts. The Tosuns moved to quash the subpoena, arguing that it was overbroad and violated privacy rights. The Court agreed and granted the motion to quash. (See Feb. 10, 2026 Order.) On Feb. 26, 2026, Mr. Caferoglu served a second subpoena on Bank of America (the subject of this motion), again seeking documents relating to Zeyher Corporation. On March 25, 2026, the Tosuns filed the present moved to quash.

The Feb. 26, 2026 subpoena seeks the following documents:

... RECORDS FOR THE PERIOD FROM JANUARY 1, 2021 TO DECEMBER 31, 2023:

1. ALL WRITINGS AS DEFINED BY CAL. EVIDENCE CODE SECTION 250 ("WRITINGS"), SUFFICIENT TO SHOW WHETHER CROSS-DEFENDANT MUSLUM CAFEROGLU ("CAFEROGLU") WAS AN AUTHORIZED SIGNER, ACCOUNT HOLDER, AGENT, OR WAS OTHERWISE GRANTED AUTHORITY TO ACCESS, DRAFT CHECKS FROM, OR INITIATE PAYMENTS FROM ANY BANK ACCOUNT(S) HELD BY ZEYHER CORPORATION. A CALIFORNIA CORPORATION WITH TAXPAYER IDENTIFICATION NUMBER S3-3696943 ("ZEYHER"), INCLUDING BUT NOT LIMITED TO SIGNATURE CARDS, ACCOUNT AUTHORIZATION FORMS, ACCOUNT OPENING DOCUMENTS, ACCOUNT MODIFICATION RECORDS, OR RESOLUTIONS IDENTIFYING AUTHORIZED USERS.
 2. ALL WRITINGS SUFFICIENT TO SHOW PAYROLL CHECKS, CHECK IMAGES, OR CHECK RECORDS DRAWN ON ANY BANK ACCOUNT(S) HELD BY ZEYHER THAT REFLECT CAFEROGLU AS SIGNER, MAKER, OR AUTHORIZED DRAFTER, INCLUDING THE FACE OF THE CHECK AND ENDORSEMENT AREA ONLY; PROVIDED THAT THE BANK SHALL REDACT ACCOUNT BALANCES, PAYEE INFORMATION, AND THIRD-PARTY INFORMATION.
 3. ALL WRITINGS SUFFICIENT TO SHOW PAYROLL-RELATED DEPOSITS OR WITHDRAWALS IDENTIFYING CAFEROGLU AS THE INITIATING PARTY, SIGNATORY, OR AUTHORIZED USER IN CONNECTION WITH ANY BANK ACCOUNT(S) HELD BY ZEYHER, PROVIDED THAT THE BANK SHALL REDACT ALL UNRELATED TRANSACTION DETAILS, ACCOUNT BALANCES, AND THIRD-PARTY INFORMATION.
 4. ALL WRITINGS SUFFICIENT TO SHOW COMMUNICATIONS BETWEEN BANK OF AMERICA AND CAFEROGLU RELATING SOLELY TO ACCOUNT AUTHORITY, SIGNING PRIVILEGES, OR ACCESS RIGHTS FOR BANK ACCOUNT(S) HELD BY ZEYHER, PROVIDED THAT THE BANK SHALL REDACT ALL UNRELATED
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TRANSACTION DETAILS, ACCOUNT BALANCES, AND THIRD-PARTY
INFORMATION.

5. ALL WRITINGS SUFFICIENT TO IDENTIFY THE MASTER USER OR ACCOUNT ADMINISTRATOR FOR THE ONLINE BANKING AND PAYROLL PORTALS OF ANY ACCOUNTS HELD BY ZEYHER, INCLUDING RECORDS SHOWING WHICH INDIVIDUAL(S) HAD AUTHORITY TO ADD, REMOVE, OR RESTRICT THE ACCESS RIGHTS OF OTHER USERS.

6. ALL WRITINGS SUFFICIENT TO IDENTIFY THE MASTER USER, ACCOUNT ADMINISTRATOR, AND/OR INDIVIDUAL(S) HELD OUT TO THE BANK AS HAVING THE PRIMARY AUTHORITY TO GRANT, REVOKE, OR LIMIT THE DIGITAL BANKING ACCESS AND PAYROLL-AUTHORIZATION PRIVILEGES OF OTHER USERS FOR ANY ACCOUNT HELD BY ZEYHER. THIS INCLUDES BUT IS NOT LIMITED TO ANY "KNOW YOUR CUSTOMER" (KYC) PROFILES OR CORPORATE RESOLUTIONS IDENTIFYING THE PRIMARY OFFICERS OF THE ACCOUNT.

7. ALL WRITINGS SUFFICIENT TO SHOW THE ELECTRONIC AUDIT, TRAIL, AUTHORIZATION LOGS, AND/OR DIGITAL SIGNATURE HISTORY FOR EVERY PAYMENT, ACH TRANSFER, OR CHECK ISSUED TO ERAY ERBAY. DOCUMENTS SHOULD BE LIMITED TO SHOWING WHICH SPECIFIC USER INITIATED AND GAVE "FINAL APPROVAL" FOR EACH PAYMENT.

8. ALL WRITINGS REFLECTING ANY MONETARY THRESHOLDS OR DUAL-SIGNATURE REQUIREMENTS IMPOSED BY ZEYHER OR THE BANK.

9. ALL WRITINGS REFLECTING ANY MONETARY THRESHOLDS, DUAL-SIGNATURE REQUIREMENTS, AND/OR INTERNAL BANK RESTRICTIONS THAT PREVENTED CAFEROGLU FROM UNILATERALLY WITHDRAWING FUNDS, SHIFTING CAPITAL, OR ISSUING PAYROLL WITHOUT THE SECONDARY APPROVAL OR CO-SIGNATURE OF ANOTHER APPROVED USER.

10. ALL WRITINGS SUFFICIENT TO IDENTIFY THE AUTHORIZED SIGNER(S) WHO AUTHORIZED THE CLOSING OF EACH ACCOUNT HELD BY ZEYHER.

11. ALL WRITINGS SUFFICIENT TO IDENTIFY THE AUTHORIZED SIGNER(S) WHO AUTHORIZED THE DISBURSEMENT OF FUNDS PRIOR TO THE CLOSING OF EACH ACCOUNT HELD BY ZEYHER.

12. ALL WRITINGS SUFFICIENT TO IDENTIFY THE PERSON(S) WHO RECEIVED THE DISBURSEMENT OF ALL FINAL FUNDS AT THE CLOSING OF EACH ACCOUNT HELD BY ZEYHER.

13. ALL WRITINGS SUFFICIENT TO IDENTIFY ANY CREDITS, FUNDS, OR ACH DEPOSITS RECEIVED FROM THE INTERNAL REVENUE SERVICE (IRS) OR U.S.

TREASURY IDENTIFIED AS EMPLOYEE RETENTION TAX CREDIT (ERTC) PAYMENTS. THIS INCLUDES ANY COMMUNICATIONS BETWEEN THE BANK AND ZEYHER (OR ITS AUTHORIZED OFFICERS) REGARDING THE STATUS, RECEIPT, OR DISTRIBUTION OF THESE SPECIFIC FUNDS, INTENDED TO SHOW WHICH INDIVIDUAL EXERCISED CONTROL OVER THESE TAX-RELATED ASSETS.

The parties never discussed how to narrow the subpoena / Improper meet and confer.

Where a subpoena is claimed to be overbroad, the Court expects the parties will meet and confer in good faith to discuss ways to narrow the subpoena. The meet and confer was inadequate.

During the meet and confer, Mr. Caferoglu’s counsel suggested discussing ways to narrow the subpoena, but never put forth any proposals as to how it could be narrowed. Caferoglu’s Opposition brief argues that at a minimum, the Court should narrow the subpoena. But Caferoglu offers few ideas as to how to narrow it—apparently leaving that issue to the Court to figure out.

The Tosuns, conversely, showed virtually no interest in meeting and confer; instead, they took the position that the subpoena must be quashed in its entirety. (Aug. 24, 2026 Salameh Decl., ¶¶ 2-9.) After being served with the subpoena on Feb. 26, 2026, instead of discussing it with Caferoglu’s counsel, they waited nearly a month before responding, and then shortly before the production date, demanded that the subpoena be withdrawn in its entirety.

One way to resolve a dispute over an overbroad subpoena is via good faith discussion and stipulation. For example, if Mr. Caferoglu is seeking Bank of America documents for the purpose of establishing facts that the Tosuns know to be true, the Tosuns could propose stipulating to that fact (or those facts) in exchange for withdrawal of the subpoena. But we’ll never know whether any agreement might have been reached, because no genuine discussion took place. Counsel for both parties are warned about the inadequate meet and confer.

The Tosuns have placed at least some of the requested documents directly at issue.

The indemnity dispute centers on the Settlement Agreement’s language regarding whether either Mr. Tosun or Mr. Caferoglu had “exclusive control” over the subject matter of Erbay’s lawsuit. (XC, ¶ 19.) The Tosuns have filed a motion for summary adjudication (“MSA”), in which they argue that Mr. Tosun and Mr. Caferoglu “shared operational control” of Stamp Bar & Grill. (April 20, 2026 Notice of MSA.) The Tosuns’ Separate Statement supporting their MSA references these facts as to Caferoglu:

UMF 7. Caferoglu was responsible for ... administering payroll.

UMF 8. Caferoglu remained authorized to issue checks on Zeyher’s behalf, and his signature appears on numerous employee paychecks—including checks to Mr. Erbay—as well as several vendor payments.

Thus, the Tosuns have placed at least some of the requested Bank of America documents directly at issue, and they have suggested no alternative means of Mr. Caferoglu obtaining such evidence.

Governing law.

Discovery rights are generally very broad. (Code Civ. Proc., § 2017.010.) Doubts are to discoverability are generally resolved in favor of permitting discovery. (*Colonial Life & Accident Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790.) But where privacy rights are implicated, the broad relevancy standard is not enough; the party seeking the discovery must show a particularized need for the information and direct relevance. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859-862.) The court then balances the requesting party's need for the information against the privacy concerns. (*Id.*) "Directly relevant" to a claim or defense means it is "essential to the fair resolution of the lawsuit." (*Id.* at 850.)

The Court narrows the subpoena to the time-period from Oct. 2021 through June 2023 (Erbay's period of employment).

The subpoena seeks documents "FOR THE PERIOD FROM JANUARY 1, 2021, TO DECEMBER 31, 2023." This time-period seems overbroad. Plaintiff Erbay alleged that he was employed from Oct. 2021 - June 2023. (Complt, ¶ 6.) His period of employment appears to be the relevant time-period. Mr. Caferoglu provides no explanation of why the subpoena seeks documents outside Erbay's period of employment. Thus, the Court will limit the subpoena to the time-period from Oct. 2021 through June 2023.

The motion to quash is GRANTED in part and DENIED in part as to Request Nos. 1-9.

The subpoena requests production of 13 categories of records, largely directed at a particular issue: who had authority and actual control over Zeyher's bank accounts, payroll, payments, and related financial activity? The indemnity dispute makes control over the restaurant and payments to employees highly/directly relevant. Under the XC, ¶ 19, control is a central issue. Plaintiff's lawsuit arose from employment/payroll conduct at the restaurant. Issues such as who could sign checks; who administered payroll; who could initiate and/or approve payments; who had online banking authority; whether dual-authorization was required; who authorized payments to employees, etc.—all appear to be directly relevant, because they go to the issue of whether Erbay's claims arose from conduct over which one party had *exclusive control*. The Tosuns' MSA makes the subpoena particularly defensible. The MSA asks the Court to find that Mr. Caferoglu had operational control and authority over payroll and checks. Yet the Tosuns simultaneously argue that Mr. Caferoglu cannot obtain the banking records that would establish (or undermine) that claim. The Tosuns' MSA itself characterizes these issues as "material" to the disposition of the MSA.

Request Nos. 1-9 appear to seek directly relevant documents, and it appears that Caferoglu has no alternative means of obtaining this information. The Court finds that Caferoglu's need for this information outweighs privacy concerns. However, the requests currently are still overly broad.

Redactions may also be necessary. For any/all documents produced by Bank of America, employee names, addresses, SSNs, account numbers, balances, and unrelated third party information shall be redacted prior to production.

The Court narrows each request or confirms production as follows for each numbered category:

1. Signature cards are to be produced.
2. Signature cards are to be produced.
3. All documents requested are to be produced.
4. All documents requested are to be produced.
5. Largely duplicative of No. 6, and documents are limited to the same extent as No. 6.
6. Caferoglu's Separate Statement states: "Cross-Complainants' specific objection [to Request No. 6] is to the "Know Your Customer" reference. [Caferoglu] is open to withdrawing that reference and could limit this request to corporate resolutions, signature cards, account authorization and modification forms, and officer designations. Accordingly, the Court will limit Request No. 6 to corporate resolutions, signature cards, account authorization and modification forms, and officer designations.
7. Documents sufficient to show the initiator or final approver of the identified payments are to be produced.
8. Any dual or multiple user signature cards are to be produced.

As to Request Nos. 9-13, the motion to quash is GRANTED.

Mr. Caferoglu has not adequately explained how monetary thresholds, internal bank restrictions, the account closing documents, or the recipient(s) of the funds at closing, is directly relevant. The same is true as to Category No. 13 (IRS/ERTC). Bank of America need not produce any documents responsive to Request Nos. 9-13.

The parties shall meet and confer and prepare and submit, for the Court's review and signature, a Protective Order that will govern documents produced by Bank of America.

Bank of America shall not produce any documents until a Protective Order is in place. No person may use any document(s) produced by Bank of America for any purpose other than for litigation of this case.

Exercising its discretion, all sanctions requests are DENIED.

Both parties share some responsibility for the lack of any real meet and confer. The Court finds, under the circumstances, that monetary sanctions are not warranted.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

25-CIV-02273 MIRAY YARASIR VS. DOUBLE AA CORPORATION, ET AL

MIRAY YARASIR
DOUBLE AA CORPORATION

ROBERT F BUZZARD
VASTI MONTIEL

Plaintiff's Motion for Protective Order

TENTATIVE RULING:

Plaintiff Miray Yarasir's motion for a protective order is DENIED. Defendant Double AA Corporation's and Hyiat Aish's request for sanctions is GRANTED, in part, and DENIED, in part.

FACTUAL BACKGROUND

On December 18, 2025, Defendants served Plaintiff with a notice of deposition, to be held on March 2, 2026. (Montiel Decl. at ¶7). Two months later, on February 18, 2026, Plaintiff informed Defendants that a Turkish interpreter was needed for the deposition. (Montiel Decl. at ¶8.) Defense counsel was surprised by this request, given Plaintiff's facility with the English language during her employment for Defendant Double AA, and because her written discovery responses attested that, while she "prefers Turkish," she writes and speaks English "with ease." (*Id.*, ¶ 8, Ex. C, Plaintiff's Responses to Interrogatories, Set One, Nos. 2.9, 2.10.) Plaintiff's discovery responses had not been prepared with the assistance of an interpreter. (*Id.*) Defense counsel proposed to accommodate an interpreter in exchange for Plaintiff stipulating that the deposition may exceed the standard seven hours (*Id.* at ¶9; Buzzard Decl., Ex. A, Email Exchange re: Interpreter.) Defense counsel also stated an expectation that Plaintiff cover payment and logistics for the interpreter, given her discovery responses stating that she can read, write, and speak English "with ease.") (*Ibid.*) Plaintiff's counsel refused to extend the time for the deposition, and the parties proceeded to the deposition with an interpreter. (Montiel Decl., ¶10.)

At the deposition, Defense counsel did not object to Plaintiff's use of an interpreter. (See Montiel Decl., Ex. A, Deposition Transcript.) After giving admonitions, Defense Counsel asked a series of questions related to a pre litigation demand letter. (Montiel Decl. at ¶11, Ex. A pp. 7-17.) Then, Defense Counsel asked: "*Do you believe that you are incapable of expressing yourself in the English language?*" (*Id.* at 18:8-9.) Plaintiff's counsel objected on the basis that Plaintiff's right to testify through an interpreter is not a proper subject for examination and stated "*I instruct my client not to answer any further questions on this topic as they're harassing.*" (*Id.* at 18:10-25.) Defense Counsel repeated her question after the break, and Plaintiff's Counsel once again instructed his client not to answer and requested a break while the question was pending. (*Id.*, at 19:2-25.)
